

STATE OF NEW YORK

8609--A

Cal. No. 205

2025-2026 Regular Sessions

IN SENATE

December 8, 2025

Introduced by Sens. MYRIE, SCARCELLA-SPANTON -- read twice and ordered printed, and when printed to be committed to the Committee on Rules -- recommitted to the Committee on Codes in accordance with Senate Rule 6, sec. 8 -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the penal law, in relation to enacting the "victims protection and child sex buyer accountability act"

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Short title. This act shall be known and may be cited as
2 the "victims protection and child sex buyer accountability act".

3 § 2. The first undesignated paragraph of section 230.05 of the penal
4 law, as amended by chapter 368 of the laws of 2015, is amended to read
5 as follows:

6 A person is guilty of patronizing a person for prostitution in the
7 second degree when, being eighteen years old or more, [~~he or she~~] such
8 person patronizes a person for prostitution and the person patronized is
9 less than [~~fifteen~~] eighteen years old.

10 § 3. Subdivisions 1 and 2 of section 230.06 of the penal law, as
11 amended by chapter 368 of the laws of 2015, are amended to read as
12 follows:

13 1. [~~He or she~~] Such person patronizes a person for prostitution and
14 the person patronized is less than eleven years old; or

15 2. Being eighteen years old or more, [~~he or she~~] such person patron-
16 izes a person for prostitution and the person patronized is less than
17 [~~thirteen~~] fifteen years old.

18 § 4. The first undesignated paragraph of section 230.11 of the penal
19 law, as amended by chapter 777 of the laws of 2023, is amended to read
20 as follows:

EXPLANATION--Matter in italics (underscoring) is new; matter in brackets
[~~-~~] is old law to be omitted.

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1 A person is guilty of aggravated patronizing a minor for prostitution
2 in the third degree when, being twenty-one years old or more, [~~he or~~
3 ~~she~~] such person patronizes a person for prostitution and the person
4 patronized is less than [~~seventeen~~] eighteen years old and the person
5 guilty of patronizing engages in vaginal sexual contact, oral sexual
6 contact, anal sexual contact, or aggravated sexual contact as those
7 terms are defined in section 130.00 of this part, with the person
8 patronized.

9 § 5. Section 230.32 of the penal law, as added by chapter 627 of the
10 laws of 1978, the opening paragraph and subdivisions 1 and 2 as amended
11 by chapter 368 of the laws of 2015, is amended to read as follows:

12 § 230.32 Promoting prostitution in the first degree.

13 A person is guilty of promoting prostitution in the first degree when
14 [~~he or she:~~

15 ~~1. knowingly advances or profits from prostitution of a person less~~
16 ~~than thirteen years old; or~~

17 ~~2. being twenty one years old or more, he or she]~~ such person knowing-
18 ly advances or profits from prostitution of a person less than fifteen
19 years old.

20 Promoting prostitution in the first degree is a class B felony.

21 § 6. The first undesignated paragraph of section 230.33 of the penal
22 law, as amended by chapter 368 of the laws of 2015, is amended to read
23 as follows:

24 A person is guilty of compelling prostitution when, being eighteen
25 years old or more, [~~he or she~~] such person knowingly advances prostitu-
26 tion by compelling a person less than eighteen years old to engage in
27 prostitution, whether by force [~~or~~], intimidation, [~~to engage in prosti-~~
28 ~~tution~~] deception, manipulation, coercion, abuse of a position of power
29 or authority, or abuse of the vulnerability or dependency of such person
30 less than eighteen years old.

31 § 7. This act shall take effect immediately.